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WILCOXSON vs NORWALK HEALTHCARE INC.

CASE NO.: 25NWCV01199

HEARING: 6/24/26 @ 9:30 AM

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TENTATIVE ORDER

Defendant

NORWALK HEALTHCARE INC., d/b/a/ INTERCOMMUNITY NURSING FACILITY HEALTHCARE & REHABILITATION CENTER's Motion for Abatement is DENIED without prejudice.

Plaintiff Lisa Wilcoxson, individually and as

Heir and Successor-in-Interest to DUANE WILCOXSON is ORDERED to the cure the defects, as set forth below, within 10 days.

Plaintiff to give NOTICE.

Defendant NORWALK HEALTHCARE INC., d/b/a/

INTERCOMMUNITY NURSING FACILITY HEALTHCARE & REHABILITATION CENTER (Defendant) moves for abatement of the action.

Background

Plaintiff Lisa Wilcoxson (Plaintiff) alleges

that while under the custodial care of NORWALK HEALTHCARE INC. d/b/a

INTERCOMMUNITY NURSING FACILITY HEALTHCARE & REHABILITATION CENTER,
Decedent DUANE WILCOXSON was subjected to elder abuse as a result of
Defendant's reckless neglect and conduct. (Complaint, ¶¶ 5-17.) Based thereon Plaintiff
alleges the following causes of action:

1.

Negligence;

2.

Violations

of the Elder and Dependent Adult Civil Protection Act;

3.

Violations

of resident rights; and

4.

Wrongful death.

Legal Standard

Code of Civil Procedure section 377.60

provides, in part: "A cause of action for the death of a person caused by the
wrongful act or neglect of another may be asserted by any of the following
persons or by the decedent's personal representative on their behalf: (a) The
decedent's surviving spouse, domestic partner, children, and issue of deceased
children, or, if there is no surviving issue of the decedent, the persons,
including the surviving spouse or domestic partner, who would be entitled to
the property of the decedent by intestate succession." "[W]rongful death
actions are considered to be 'joint, single and indivisible.'" (Ruttenberg
v. Ruttenberg (1997) 53 Cal.App.4th 801, 807 [Ruttenberg].) The Court "has
jurisdiction to try a wrongful death action even absent joinder of one or more
heirs of the decedent." (Id. at p. 808, citing Sanders v. Fuller
(1975) 45 Cal.App.3d 994, 999.)

"Defendants facing a wrongful death action in
which all the heirs should have, but have not, been joined are entitled to move
to abate the action." (Adams v. Superior Court (2011) 196 Cal.App.4th
71, 77.) "The California Supreme Court in holding that a wrongful death action
by only a portion of the heirs is not the action authorized by statute said,

'[a]ll the heirs should, therefore, join as plaintiffs in an action by heirs, and if the consent of anyone who should be so joined cannot be obtained, he may be made a defendant ([Code Civ. Proc.] § 382) ... where all the heirs are not joined, and timely objection is made on that ground by a defendant, the action should be abated, or, at least, the other heirs should be made parties." (Id. at p. 77, citing *Salmon v. Rathjens* (1907) 152 Cal. 290, 294-95; *Valdez v. Smith* (1985) 166 Cal.App.3d 723, 730.)

Discussion

Here, Defendant moves to abate the action until all heirs have been joined. Defendant contends that (1) Plaintiff has failed to file the necessary Successor in Interest Declaration, in violation of C.C.P. §377.32; (2) Plaintiff has failed to include the heirs of Duanne Wilcoxson to the Wrongful Death cause of action, who are indispensable parties; (3) the statute of limitations for Wrongful Death has expired; and (4) no party has standing to prosecute this case as it currently stands.

In opposition, first, Plaintiff argues that California Code of Civil Procedure section 377.60 authorizes wrongful death actions to be brought by "the decedent's surviving spouse, domestic partner, children, and issue of deceased children," without the requirement to file a successor in interest declaration for the wrongful death claim. Second, Plaintiff argues that abatement is not appropriate because joinder of the surviving heirs is curable, and indeed the Doe-amended heirs were added on November 25, 2025, they are now parties to the action, rendering abatement unnecessary. Third, Plaintiff argues that as to the claims being time-barred, Defendant's motion contains no declaration from any heir, no evidence regarding discovery of negligence, no evidence regarding accrual, and no evidence regarding delayed discovery. Instead, Defendant asks the Court to speculate. Finally, Plaintiff argues that Defendant fails to show prejudice given the case was filed on April 2025 and Trial is more than a year away (June 2027), discovery remains open, and any issues regarding omitted heirs can be addressed through amendment and appropriate discovery without halting the litigation. If additional heirs need to be identified, there is ample time to do so.

In reply, Defendant contends that as of the date of the filing of this Reply Brief on June 16, 2026, Plaintiff has still not filed the Successor in Interest Declaration. No "Doe-Amended heirs" were added to this case on November 25, 2025, as Plaintiff alleges. Moreover, Defendant

has shown that it has been prejudiced and forced to incur unnecessary attorneys' fees and court costs due to Plaintiff's repeated failure to participate in any meet and confer process, prosecute this case and repeated failure to comply with statutory deadlines.

The Court finds that Defendant has made the requisite showing for abatement. Count 1 (Negligence), Count 2 (Elder and Dependent Adult Abuse), and Count 3 (Violation of Resident Rights) as alleged in the Complaint are survival causes of action because they allege injury to decedent during his lifetime. As such, Plaintiff is required to file a successor-in-interest declaration in compliance with CCP § 377.32. Plaintiff offers no explanation for the delay in complying with Section 377.32 in the 14 months since the Complaint was filed on April 4, 2025. However, given the policy of deciding actions based on the merits, the Court shall grant Plaintiff the opportunity to cure the defects within 10 days. As to the statute of limitations argument, the Court finds that at this juncture it is unknown whether the Doe-heirs may still have a claim in this action based on the delayed discovery rule. Therefore, Plaintiff's claim is not barred by statute of limitations.

Plaintiff is ordered to file the successor-in-interest declaration required by Code of Civil Procedure section 377.32 within 10 days of this order.

Plaintiff is ordered to add the Doe heirs, the seven children of Duane Wilcoxson, identified in the January 29, 2026 responses to Defendant's Form Interrogatories, Special Interrogatories, Requests for Production, and Requests for Admission within 10 days of this order. (Aziz Decl., ¶ 11, Exhibit E.) As Defendant states, Plaintiff has failed to make the amendments alleged in opposition.

Defendant cites Ruttenberg as the basis for its argument that Plaintiff should be ordered to join Decedent's remaining heirs or abate this action until this can be accomplished. "Omitted heirs... are 'necessary parties,' and plaintiff heirs have a mandatory duty to join all known omitted heirs in the 'single action' for wrongful death. If an heir refuses to participate in the suit as a plaintiff, he or she may be named as a defendant so that all heirs are before the court in the same action. An heir named as a defendant in a wrongful death action is, in reality, a plaintiff." (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808, citations omitted.)

Defendant argues that it is exposed to risk of subsequent litigation if omitted heirs are not joined. "If an heir is not included in the original wrongful death action, the heir may not subsequently bring an independent action against the tortfeasor unless the tortfeasor had knowledge of the existence of the heir at the time of the settlement." (Romero v. Pacific Gas & Electric Co. (2007) 156 Cal.App.4th 211, 216.) "If the defendant had knowledge of the omitted heir, but did not attempt to abate the action or join the heir, the defendant waives the right to a single wrongful death action and may be subjected to a second wrongful death action by the omitted heir, even after settlement of the original action." (Smith v. Premier Alliance Ins. Co. (1995) 41 Cal.App.4th 691, 698.)

The Court agrees with Defendant's argument—because the omitted heirs, and therefore, necessary parties have not been joined, Defendant remains open to liability in the future. "By settling with less than all of the known heirs, the defendant waives the right to face only a single wrongful death action and the nonsettling heirs may continue to pursue the action against the defendant. This remains true even if the non-settling heirs are nominally defendants in the case." (Smith, supra, 41 Cal.App.4th at 698.) "The defendant has the burden and the means of determining whether an heir has been served..." (Romero, supra, 156 Cal.App.4th at 215.)

Accordingly, Defendant's motion for abatement is DENIED without prejudice.

Plaintiff is ORDERED to (1) file the successor-in-interest declaration required by Code of Civil Procedure section 377.32 and (2) add all the identified Doe heirs within 10 days of this order.